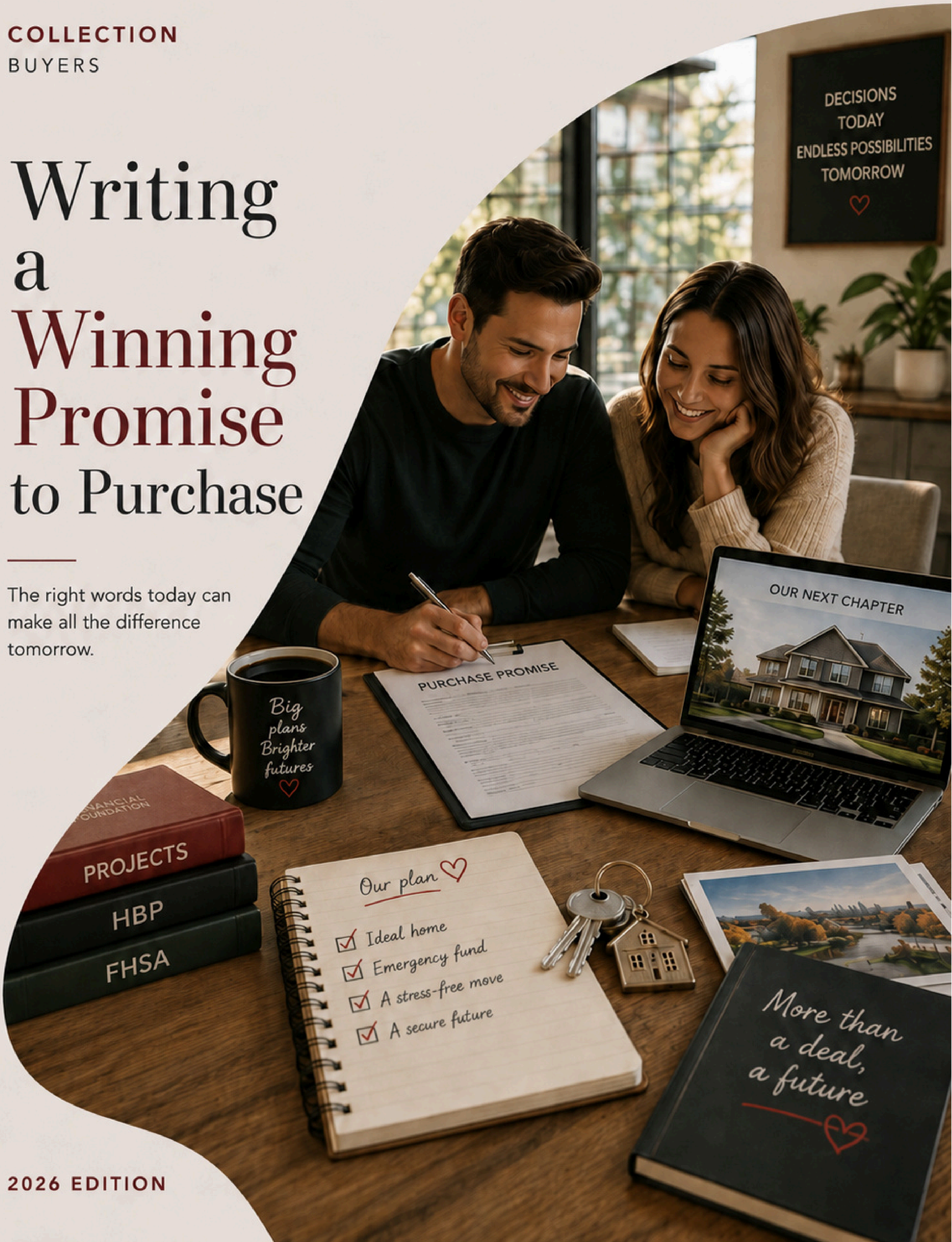
Signé par Em

No. 07

COLLECTION
BUYERS

Writing a Winning Promise to Purchase

The right words today can make all the difference tomorrow.



2026 EDITION

BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

Writing a Strong Promise to Purchase · Collection Buyers · Guide No. 07 · 2026 Edition

COLLECTION BUYERS · GUIDE NO. 07

Writing a Strong Promise to Purchase

Price, conditions, deadlines and offer strategy – without trapping yourself

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The promise to purchase is the moment where everything comes into play. Well constructed, it protects your interests, reassures the seller and gives you legitimate exit options. Poorly constructed, it can commit you to more than you intended... or cause you to lose the property.

This guide dissects each part of the offer: the price, the inclusions, the conditions that protect you, the deadlines, the deposit, and the strategy according to the type of market.

Each chapter concludes with a lined “My Notes” page to prepare YOUR offer with your broker.

The promise to purchase is the document that transforms your interest into a commitment. Well written, it protects you; sloppy, it exposes you. This guide dissects its legal scope, the conditions that protect you, how to set your price and conduct the negotiation.

Your broker drafts and validates these framed documents: this guide makes you active and informed about each clause.

CHAPTER

What a promise to purchase (really) is

> *Understand the legal scope of your offer.*

The promise to purchase is a binding document: as soon as the seller accepts it, a contract is formed. We therefore never offer “to see”. It specifies the price, the goods included and excluded, the date of possession, the possible deposit, and above all the conditions which must be met for the sale to take place.

In Quebec, these documents are standardized and regulated; your broker completes them with you and explains each clause to you. Take the time to understand before signing.

Never write a promise “just to see”: as soon as the seller accepts it, you are committed. Every part counts - price, inclusions and exclusions, ownership date, terms. A well-made promise protects your interests as much as it formalizes your offer.

> EMILIE'S ADVICE
>
> *Never write a figure in a promise to purchase that you would not be prepared to honor. An accepted offer is a contract, not a simple expression of interest.*

CHAPTER

The conditions that protect you

> *Insert the correct suspensive conditions.*

Conditions are your legitimate exit doors. The most common:

- Satisfactory inspection by a recognized professional.
- Obtaining final mortgage financing.
- Examination of documents (certificate of location, seller's declaration, co-ownership documents).
- Sometimes: prior sale of your current property.

Each condition has a delay. If a condition is not resolved on time and to your satisfaction, you can renegotiate or walk away without penalty - that's the whole point.

Your conditions are your legitimate exit doors: satisfactory inspection, obtaining financing, review of documents (especially in co-ownership). Resisting the temptation to withdraw them “to win” in a tight market is what protects you from a regretful purchase. A way out is not a weakness.

> EMILIE'S ADVICE
>
> *In a tight market, we are tempted to remove conditions to “win”. Withdrawing the inspection or financing can put you at enormous risk. Always discuss the price of this bet with your broker before taking it.*

CHAPTER

Set the right offer price

> *Offer based on data, depending on the market.*

Your broker prepares a comparative analysis: recent sales of similar properties in the area. It is the rational basis for your price, much more reliable than the asking price or emotion.

Adapt to the market

- Buyers' market (abundant supply): you have leverage, we can offer below the asking price and keep all its conditions.
- Sellers' market (rarity): offers are competitive; the price and conditions strategy must be more refined.
- Always: a maximum limit set when cold, that of your comfort.

Set your price based on a comparative analysis (similar recent sales), not on feeling. This is your rational basis for offering without overpaying or upsetting the seller. In a balanced market, an offer that is too low can simply close the door to negotiation.

> EMILIE'S ADVICE
>
> *The asking price is not the value: it is a marketing strategy of the seller. Bid based on comparables, not on the label.*

CHAPTER

Deadlines, filing and counter-proposals

> *Master mechanics and negotiation.*

Your offer has a validity period (the seller must respond before the expiry date). A deposit (paid in trust) can accompany the offer to demonstrate your seriousness; it is applied to the closing price.

The dance of counter-proposals

The seller can accept, refuse, or make a counter-offer (price, date, conditions). Each counter-proposal restarts the negotiation. Stay focused on your limit and the whole picture (price AND conditions AND dates), not just the amount.

Master the mechanics: validity period of the offer, deposit in trust (guarantee of seriousness), and counter-proposals. Each counter-proposal reopens the negotiation: keep your ceiling in mind and respond based on the facts, not under deadline pressure.

> EMILIE'S ADVICE
>
> *A possession date that suits the seller can be worth as much as a better price. Ask your broker what matters to the other party - we negotiate better what we understand.*

CHAPTER

Multiple offers: keep a cool head

> *Decide in advance so as not to overbid out of emotion.*

In a multiple offer situation, several buyers submit at the same time, often without knowing the other amounts. Emotion pushes you to go beyond your limit “just this once”.

Your anti-panic plan

- Set your absolute ceiling price BEFORE submitting, and write it down.
- Present a “clean” offer: reasonable conditions, solid financing, suitable dates.
- Accept that there will be other properties: none justify breaking your plan.

In multiple offers, decide in advance your maximum amount AND the conditions you refuse to abandon. A clean, pre-approved offer with flexible deadlines is often as reassuring as an extra dollar. Losing a property can be overcome; overpaying follows you for years.

> EMILIE'S ADVICE
>
> *The house you get by going way over your budget sometimes becomes a burden. Losing a bidding war often means protecting yourself from a bad decision.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Have a comparative analysis prepared for the property in question.
2. Decide on my conditions and my ceiling price.

Within 30 days

1. Structure the offer with my broker (price, conditions, deadlines, deposit).
2. Prepare my strategy in the event of a counter-proposal or multiple offers.

Then

1. Submit a strong offer and stay within my limit.

Before submitting my offer

1. Obtain a recent comparative analysis and set my ceiling price in writing.
2. List my essential conditions (inspection, financing, documents).

REFERENCES

Resources & glossary

- Promise to purchase: binding offer specifying price, conditions, deadlines.
- Condition precedent: clause which must be met for the sale to take place.
- Comparative analysis: similar recent sales used to set the price.
- Trust deposit: sum paid with the offer, applied to the price at closing.
- Counter-proposal: response from the seller modifying the terms of the offer.

- Promise to purchase: offer which becomes a contract upon acceptance by the seller.
- Condition precedent: clause on which the validity of the sale depends (inspection, financing).
- Trust deposit: sum deposited as a guarantee of seriousness, in a protected account.
- Counter-proposal: response modifying a term of the initial offer.
- Date of possession: agreed date of handing over the keys.

GO FURTHER

Quiz - test yourself

1. An accepted promise to purchase is:

A) A simple intention

B) A binding contract

C) Worthless

D) A receipt

2. The conditions precedent serve to:

A) Increase the price

B) Offer you legitimate exit doors

C) Pay the notary

D) Decorate the offer

3. Remove the tight market inspection condition:

A) Is risk-free

B) May expose you to significant risk

C) Is obligatory

D) Lower the price

4. The right offer price is based on:

A) The asking price

B) A comparative analysis of recent sales

C) Emotion

D) Chance

5. The asking price is:

A) The exact value

B) A seller's marketing strategy

C) Fixed by law

D) Always negotiable downwards

6. A trust deposit:

A) Is lost in advance

B) Demonstrates seriousness and applies to the closing price

C) Go to the broker

D) Replaces the down payment

7. A counter-proposal:

A) Ends the negotiation

B) Relaunch the negotiation on price, dates or conditions

C) Is illegal

D) Forced to accept

8. In multiple offers, the key reflex is:

A) Exceed your budget to win

B) Set and respect a cold-decided ceiling price

C) Remove all its conditions

D) Offer at random

Answers

1. B - Upon acceptance, a contract is formed (chap. 1).

2. B - Inspection, financing, document review (chap. 2).

3. B - An undetected defect can be very expensive (chap. 2).

4. B - The comparables give the real value (chap. 3).

5. B - It is not value, but a strategy (chap. 3).

6. B - It is applied to the final price (chap. 4).

7. B - Each counter-proposal reopens the discussion (chap. 4).

8. B - We decide our limit in advance (chap. 5).

Make informed decisions.
Choose with confidence.
Move forward without regret.

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